

July 21, 2026

Re: Temporary Placement of 7-Hydroxymitragynine Above a Specified Threshold in Schedule I,
Request for Information, Docket No. HHS-OASH-2026-0232

Global Kratom Coalition, Inc., by counsel, hereby submits these comments in response to the request published in the above-referenced docket. GKC is a non-profit public advocacy organization that represents those who sell natural kratom leaf products, supports demonstrably safe and responsible use of natural kratom leaf, and opposes synthetic alkaloid concentrates, such as 7-hydroxymitragynine (7-OH) when above the threshold limits specified by HHS and DEA.

The purpose of this comment is to alert the agency to an abuse of the rulemaking process potentially actionable under 21 U.S.C. § 331(a) and 18 U.S.C. § 371 by certain parties that are inducing the submission of public comments in response to this docket by offering in exchange either concentrated synthetic 7-OH tablets or discounts on the purchase of them. The evidence of this abuse is presented hereinbelow.

Evidence of Provision of Illicit Concentrated Synthetic 7-OH and Store Credits for Concentrated Synthetic 7-OH in Exchange for Comments in This Proceeding

Pure Leaf Kratom, a seller of **Concentrated Synthetic** 7-OH, via <https://pureleafkratom.com/understanding-7oh-ban>, is offering 6 free 300 mg OPIA 7-OH tablets to each person who signs a petition against scheduling of **concentrated synthetic** 7-OH and files a comment in this proceeding. The site also invites consumers to “stock up now while inventory is still available—this window is closing fast,” stating “this is your last opportunity to purchase concentrated 7-Hydroxymitragynine products legally. We encourage all customers to make informed decisions and secure their supply while it’s still available.” The group identifies itself as affiliated with HART and 7 Hope Alliance.

7-OH, another seller of **concentrated synthetic** 7-OH, includes on its web site, <https://7oh.com/pages/7-oh-federal-scheduling-facts-deadlines-and-how-to-comment>, an offer of “\$20 in 7OH.com store credit” for each person who files a comment in this proceeding.

ELYXR, another seller of **concentrated synthetic** 7-OH, https://www.elyxr.com/blog/federal-7-oh-scheduling-what-it-means-for-your-orders/?srsltid=AfmBOoqWVjJae_xrl-nS_i9uRY8AszcHOlpnb5-oRTbx9aRSOeKoxLDx&utm_, offers those who comment in this proceeding a “\$30 in store credit,” stating “Make your voice heard on the federal 7-OH proposal, and we will add \$30 to your Elyxr account as a thank you.”

In an effort to induce the submission of comments in opposition to **concentrated synthetic** 7-OH scheduling through this proceeding, these parties have provided incentives to consumers in the form of adulterated products that are unlawful to distribute and sell in the United States, indeed the very products that are the subject of FDA action, FDA recommendation for DEA scheduling, and DEA's Notice of Temporary Scheduling. As explained below, the offer to provide the adulterated products either directly or at a discount violates 21 U.S.C. § 331(a) and possibly 18 U.S.C. § 371.

Present Adulterated Status of concentrated synthetic 7-OH Under 21 U.S.C. § 331(a)

Even before FDA recommendation of, and DEA publication of, the Notice of Temporary Scheduling of 7-OH, Mitragynine Pseudoindoxyl, MGM-15, and MGM-16, FDA made clear that **concentrated synthetic** 7-OH was adulterated and unlawful for sale in the United States. Under 21 U.S.C. § 331(a), the introduction or delivery for introduction into interstate commerce of an adulterated dietary supplement, food, or drug is prohibited. Violations of 21 U.S.C. § 331 are subject to criminal penalties under 21 U.S.C. § 333, including imprisonment of up to one year for first-time violations and up to three years for violations committed with intent to defraud or mislead.

In July 2025, concurrent with its recommendation to DEA that **concentrated synthetic** 7-OH be scheduled as a Schedule I substance, FDA began investigations of companies engaged in the manufacture, sale, and distribution of **concentrated synthetic** 7-OH. FDA issued warning letters to over one dozen manufacturers, sellers, and distributors of **concentrated synthetic** 7-OH products explaining that the products are adulterated and not lawful dietary supplements, food additives, or ingredients in any approved drug. The FDA also coordinated the seizure of approximately 73,000 units of **concentrated synthetic** 7-OH products and indicated enforcement is focused on concentrated products. These actions indicate federal restrictions on distributing and selling **concentrated synthetic** 7-OH products under the Federal Food, Drug, and Cosmetic Act, independent of CSA scheduling.

It is therefore in furtherance of illegal activity that those responsible for promoting the submission of comments in support of **concentrated synthetic** 7-OH are providing in return free **concentrated synthetic** 7-OH tablets or discounts on purchase of **concentrated synthetic** 7-OH products. It may also constitute a criminal conspiracy to abuse FDA's comment process in violation of 18 U.S.C. § 371. The FDA should investigate each of these parties to determine if referrals ought to be made to the Department of Justice for criminal investigation and/or prosecution. The agency should investigate to determine precisely which comments have been filed in response to these offers and whether the commenting parties have all revealed the incentive given them to file so that the agency may determine if the conspiracy has given rise to a violation of 18 U.S.C. § 371.

Criminal Prohibition Against Abuse of Agency Comment Proceedings, 18 U.S.C. § 371

The federal conspiracy statute, 18 U.S.C. § 371, makes it a crime for two or more persons to conspire to defraud the United States or any agency in any manner or for any purpose. Courts have interpreted "defraud" to encompass any conspiracy to impair, obstruct, or defeat the lawful function of any department or agency of the United States by corrupt or dishonest means. *United States v. Shoup*, 608 F.2d 950, 964 (3d Cir. 1979); *United States v. Coplan*, 703 F.3d 46, 61 (2d Cir. 2012). The statute does not require that the government suffer a financial loss; it is sufficient that the conspiracy is calculated to impair or obstruct a lawful government function.

Agency comment processes are a critical and lawful function of federal agencies, including HHS. Orchestrating a campaign to flood the HHS comment docket with incentivized comments — particularly when the incentive is the provision of the very illicit substance that is the subject of proposed scheduling due to its highly addictive nature— may constitute a conspiracy to impair the integrity of the rulemaking process by dishonest means, in violation of § 371. A corrupt or dishonest element exists in the concealment of the incentive (here, the illicit drug in exchange for the comment) if the submitted comments themselves do not reveal the incentive given for the comments.

Conclusion

By these comments, GKC alerts the FDA to a conspiracy among sellers of **concentrated synthetic** 7-OH to flood this docket with incentivized comments. The above-described actions of Pure Leaf Kratom, 7-OH, and Elyxr to induce consumers to file comments in opposition to proposed scheduling of **concentrated synthetic** 7-OH by either supplying them with that adulterated substance or by supplying them with dollar discounts on the purchase of that adulterated substance violates federal adulteration law, 21 U.S.C. 331(a), and may constitute a conspiracy to impair, obstruct or defeat this proceeding in violation of 18 U.S.C. § 371. The agency should investigate these specific parties, identify all comments filed in response to these incentives, determine if the commenters have revealed the incentive given to them in the comments, and determine if evidence sufficient for a Justice Department referral exists under the respective statutes. At a minimum, the agency should take into account the illicit incentive when determining the weight to be given the comments affected.

Sincerely,

/s/ Jonathan Emord

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